

IN THE COURT OF APPEAL OF TANZANIA

AT DODOMA

(CORAM: FIKIRINI, J.A., MGEYEKWA, J.A. And MASARA, J.A.)

CIVIL APPEAL NO. 15 OF 2025

ANAMARIA SUMARI APPELLANT

VERSUS

AFRICAN LYAKURWA RESPONDENT

(Appeal from the Judgment and Decree of the High Court of Tanzania

Temeke Sub-registry (One Stop Judicial Centre) at Dar es Salaam)

(Omari, J.)

dated the 15th day of October, 2024

in

Civil Appeal No. 4784 of 2024

JUDGMENT OF THE COURT

13th & 31st August, 2026

MASARA, J.A.:

Annamaria Sumari and African Lyakurwa, the appellant and the respondent, respectively, tied marriage knots at Saint Peter's Catholic church on 15/08/2015. At that time, they had a covenant of staying together for better and for worse till death of one of them was to put them asunder. In their marriage life, they were blessed with two children, a girl and a boy. According to the appellant, the parties also acquired matrimonial properties, including a four-room house situated at Goba Tegeta "A", Dar es Salaam, a Toyota Harrier motor vehicle, registration No. T825 DKB, and various household items.

Their vows did not last long. According to the appellant, the marriage between her and her husband, though sweet for a while, started getting sour after a very short while and by 2019 it had completely deteriorated beyond repair. She alleged cruelty, loss of mutual affection, adultery, threats to kill her with a firearm, disrespect towards her and the children, chronic anger, selfishness, desertion from 12/05/2019, and wilful neglect to provide for basic needs for the family.

The appellant subsequently instituted Matrimonial Cause No. 121 of 2023 at the District Court of Temeke (the trial court), seeking among other reliefs; a decree of divorce, equal division of the matrimonial assets, custody of the two children with restricted visitation by the respondent, maintenance arrears of TZS 34,550,000/=, monthly maintenance of TZS 750,000/= per month for herself and the children, and payment of the children's school, transport and medical expenses.

The respondent, in his written statement of defence and his testimony in court, disputed the allegations and maintained that the appellant had voluntarily left the matrimonial home after he became seriously ill and had lost his job. He denied committing the alleged acts of cruelty, adultery, threats, or neglect, and contended that the appellant failed to establish that the marriage had broken down irreparably.

He further maintained that he still loved his family and denied acquiring any matrimonial property during the existence of the marriage. In particular, he alleged that the house they lived in was not a matrimonial property as it belonged to his brother. Regarding the Toyota Harrier which he had purchased on instalment, he stated that it had been repossessed by its owner after he failed to meet the agreed instalment payments.

Having heard the parties, their witnesses and scrutinized their exhibits, the trial court was satisfied that the marriage between the couple could not be salvaged. It therefore dissolved the marriage by granting a decree of divorce. It also granted custody of the children to the appellant, but allowed the respondent unconditional weekend and holiday visitation rights. The respondent was also ordered to provide monthly maintenance for the children to the tune of TZS 200,000/=. However, it declined to award maintenance arrears or divide the claimed matrimonial assets for want of sufficient proof that the assets existed and were acquired during the existence of the marriage.

Dissatisfied with the decision of the trial court, the appellant appealed to the High Court of Tanzania, at Temeke (One Stop Judicial Centre) (the first appellate court), in Civil Appeal No. 4784 of 2024. On 15/10/2024, the High Court dismissed the appeal in its entirety. The appellant, still

dissatisfied, has preferred the instant appeal on nine grounds, which can be paraphrased as follows:

- a) The High Court erred in law by its failure to analyse the documentary evidence admitted by the trial court, thereby affecting the outcome of the judgment;*
- b) The High Court erred in law by relying on the trial court's handwritten notes instead of the officially typed proceedings, thereby compromising the transparency and integrity of the judicial process;*
- c) The High Court erred in law by dismissing the first, sixth and seventh grounds of appeal without analysing them, thereby denying the appellant the right to be heard;*
- d) The High Court erred in law by failing to properly understand and determine grounds 6 and 7, resulting in a miscarriage of justice;*
- e) The High Court erred in law by misapplying the legal standards to the respondent's alleged immoral and abusive conduct;*
- f) The High Court erred in law by misapplying the respondent's legal obligation to provide maintenance, thereby failing to award the appellant maintenance arrears;*
- g) The High Court erred in law by failing to consider the children's ages and standard of living in determining maintenance, resulting in an inadequate award;*
- h) The High Court erred in law by exercising its discretion arbitrarily in failing to require a social inquiry report despite the circumstances of the case;*

- i) The High Court, as the first appellate court, erred in law by failing to properly re-evaluate the evidence concerning the disputed house and correct the trial court's errors.*

At the hearing of the appeal, the appellant was represented by Ms Elizabeth Mlemeta, learned advocate. On the other hand, the respondent was represented by Mr. Walter Shayo and Mr. Adolf Temba, both learned advocates. Both sides filed written submissions in support of their respective positions. In Court, the learned advocates were allowed to highlight salient features of the submissions already on record.

Submitting in support of the grounds of appeal, Ms Mlemeta maintained her position, on the first ground, that the first appellate court erred in failing to evaluate evidence tendered at the trial. She was emphatic that what the High Court did was to merely mention the evidence as opposed to analysing that evidence. Particular emphasis was given to the way the appellant's exhibits, such as Exhibits P3 and P4, were treated. That, failure to analyse the evidence led to an unjust decision. She relied in the cases of **Meneja Mkuu Zanzi Resort Hotel vs Ali Said Paramana** (Civil Appeal No. 296 of 2019) [2020] TZCA 1920 and **Hamis Rajabu Dibagula vs Republic** [2004] TLR 196, to support her assertion.

On the second ground of appeal, it was Ms Mlemeta's assertion that the first appellate court was wrong when it decided to refer to the

handwritten record of the trial court, which neither of the parties herein had access to. That, as the typed proceedings were certified as true record, and as they had material errors in some respects, particularly with regard to admission of the sale agreement of the vehicle, the learned Judge should have impugned the same as they were.

Ms Mlemeta combined grounds 3 and 4 which impugn the first appellate court's analysis of the first, sixth and seventh grounds of appeal at the High Court. In those grounds, the appellant had asked the High Court to fault the decision of the trial court for considering evidence that was not admitted in court. Ms Mlemeta faulted the High Court Judge in resorting to handwritten records, instead of analysing the evidence as it is on record. This, in her view, was an error which led the first appellate court to condone the poor handling of the exhibits allegedly tendered, and dismissed the grounds unjustifiably. She cited the decision of this Court in **Leonard Mwanashoka vs Republic** (Criminal Appeal No. 226 of 2014) [2015] TZCA 294, to support her averment.

That, failure to properly analyse the evidence led the first appellate court to agree with the trial court that the vehicle which had been given to the appellant as a gift by the respondent was bought by instalments, thereby contravening section 61 of the Law of Marriage Act, Cap. 29. Counsel implored the Court to step into the shoes of the first appellate court to re-

evaluate evidence tendered at the trial court. She relied in the case of **Nurdin Iddi Ndemule vs Republic** (Criminal Appeal No. 410 of 2018) [2021] TZCA 99.

In ground 5 of the appeal, Ms Mlemeta impugned the first appellate court in its failure to properly analyse the evidence regarding the respondent's immoral and abusive behaviour. In her view, the High Court's conclusion that there was no substantive evidence to support those serious allegations, was a result of misapplying the legal standard required in civil cases.

On ground 6 of the appeal, Counsel for the appellant challenged the first appellate court's failure to abide with the requirement of the law that men are obliged to maintain their spouses and children. That, such failure led it to disallow the appellant's claim of TZS 34,550,000/= as a refund of the amount she spent for the children from September 2019 to 2023.

Expounding on ground 7 of the appeal, Ms Mlemeta submitted that, by upholding the amount of money granted as maintenance of the two issues of marriage, the High Court did not consider the welfare of the children, particularly their standard of living and their age as required by section 44 of the Law of the Child Act.

Regarding the 8th ground of appeal, Counsel for the appellant maintained that failure to require a social inquiry report from a Social Welfare Officer by the first appellant court prejudiced a number of considerations; including maintenance, visitation rights and ability of the respondent to pay an appropriate maintenance to the children's welfare. She implored the Court to emphasize on the importance of ensuring the best interest of children in all custody and maintenance matters.

Submitting in respect of the last ground of appeal, Ms Mlemeta averred that, had the High Court properly evaluated the evidence regarding the house which the appellant maintained that it was matrimonial property, it would not have arrived at the conclusion it made. That the respondent's evidence regarding ownership of the house was contradictory and evasive. She urged the Court to fill in the shoes of the first appellate court and make an appropriate evaluation of the evidence, as the first appellate court abdicated its duty to so do. She relied in the decision in the case of **Standard Chartered Bank Tanzania Ltd vs National Oil Tanzania Ltd & Another** (Civil Appeal No. 98 of 2008) [2013] TZCA 228.

She urged the Court to allow the appeal with costs.

In reply, Mr. Shayo, while adopting the contents of his written submissions, vehemently opposed all the averments made on behalf of the appellant. Responding to the first ground of appeal, Counsel for the

respondent countered the argument made with regard to the appellant's exhibits. In his view, the first appellate court critically examined all the documents tendered by the appellant, contrary to what has been averred by Counsel for the appellant.

Replying to the second ground of appeal, Mr. Shayo contended that the ground lacks merit on the basis that, as the typed proceeding was found incomprehensible, resort had to be on the original handwritten record. That, the appellant was not denied the right to peruse the original record; therefore, the complaint lacks basis. Further, that the appellant has not adequately disclosed the injustice suffered arising from the alleged confusion. To him, the handwritten record only made clarity in one aspect; that is, the appellant counsel objected the admission of the sale agreement and not the handover or TRA records. Further, that there was a typo in one area where instead of recording Exhibit D1, the typed record shows Exhibit P1, which has since been clarified by resorting to the handwritten records.

On the combined grounds 3 and 4, Counsel for the respondent considered the submissions by the appellant misleading on what was objected to. That, Exhibit D1 and D2 were not objected to, which exhibits sufficiently averted any insinuation regarding ownership of the vehicle in question.

On the 5th ground of appeal, Mr. Shayo contended that the alleged immoral and abusive behaviour by the respondent were mere accusations lacking proof and that both courts below were justified to disregard them. Further, that section 125 of the Law of Marriage Act does not restrict a father from accessing his children, and that section 39 of the Law of the Child Act provides for unfettered access to and, or custody by the biological father of his children.

Regarding the 6th ground of appeal, Mr. Shayo was of the view that the issue having been raised for the first time in this appeal, should not be entertained. He made reference to the decision of the Court in **Simon Godson Macha (*Administrator of the Estate of the late Godson Macha*) vs Mary Kimambo (*Administratrix of the Estate of the late Kesia Zebedayo Tenga*)** (Civil Appeal No. 393 of 2019) [2020] TZCA 36, to support his position. That, in any case, section 129(1) and (2) of the Law of Marriage Act regarding maintenance of the children after divorce or separation was complied with by the lower courts.

With regard to the appellant's claim for refund, Mr. Shayo agreed with the findings of the two courts below that other than putting the said figure in the petition for divorce, the appellant did not prove the same in her testimony. That, on the contrary, the respondent tendered exhibit D4 and D5 as proof that he was responsible to maintain the children as required by law.

Opposing the 7th ground of appeal, Mr. Shayo agreed with the appellant Counsel's reference to section 44 of the Law of the Child Act, as the governing provision when it comes to assessing what is adequate in terms of maintenance. That, on the basis of the respondent's illness and being unemployed, the courts below were right to decide that TZS 200,000/= was justified as maintenance, as that amount did not include the costs that the respondent will incur in terms of education and health.

Contesting the 8th ground of appeal, Counsel for the respondent, stated that the ground was new. Nevertheless, he maintained that section 45 of the Law of the Child Act does not make it mandatory for the court to order a Social Inquiry Report in all cases. That, it is upon the discretion of the court, to order such reports. That, where the respondent was merely asking for access and visitation right, such report was unnecessary as he was not asking for custody nor did he object to the appellant's right of custody.

On ground 9 of the appeal, Mr. Shayo reiterated what he submitted in ground 1 of the appeal, adding that the appellant was obliged to prove that the house in the pictures tendered was jointly acquired by efforts of the appellant and the respondent. Further, that the appellant, in her testimony, stated that she did not know the source of funds for the purchase of the plot nor had she seen any document of ownership of the said house. Also, that the respondent categorically denied ownership of the house in question, the

evidence which was supported by DW2, who is brother of the respondent and the actual owner of the house as evidenced by exhibit D9.

He concluded by urging dismissal of the appeal with costs.

In rejoinder, Ms Mlemeta did not have much to say other than reiterating what she had arduously submitted in chief. She urged the Court to note that the respondent had not disputed the authenticity of the pictures and that Exhibit P4 showed the appellant's contribution towards the acquisition of the disputed house.

We have dispassionately considered the submissions by Counsel for both parties, both oral and written. We have also considered the authorities cited and the record of the two courts below. We need to state at the outset that, this being a second appeal, the Court remains guided by the settled principle that it will not ordinarily interfere with concurrent findings of fact by the courts below, unless it is demonstrated that there has been a misapprehension of the nature or quality of the evidence, misdirection on the law, or that the decision is perverse. See: **Mussa Mwaikunda vs Republic** [2006] TLR 387.

The Court is, however, entitled to examine the record in order to satisfy ourselves whether the first appellate court properly discharged its duty of re-evaluating and re-assessing the evidence before it. The duty of the

first appellate court to re-evaluate evidence is well established in the Court's decision in **R.D. Pandya vs Republic** [1957] EA 336; **Hassan Mohammed Mfaume vs Republic** [1981] TLR 167; **Edwin Isidori Elias vs Serikali ya Mapinduzi ya Zanzibar** (Criminal Appeal No. 145 of 2002) [2003] TZCA 128 and **Standard Chartered Bank Tanzania Ltd vs National Oil Tanzania Ltd & Another** (supra).

Having the above in mind, we now proceed to deal with the grounds of appeal as presented. In the first ground, the appellant contends that the High Court erred in law by misanalysing documentary evidence admitted by the trial court, thereby affecting the outcome of the judgment. The complaint, in our view, is not vindicated by the record. We find that the learned Judge properly re-evaluated the evidence and considered the documentary exhibits admitted before the trial court one by one. The typed proceedings forming part of the record did not reflect all the exhibits admitted during the trial. The High Court identified that deficiency and consulted the original handwritten proceedings in the trial court file in order to ascertain the complete and authentic record. Upon doing so, the High Court considered the exhibits admitted in evidence, including Exhibits P1 to P5 and D1 to D9. There is therefore no basis for suggesting that the High Court relied upon documents that had not been admitted.

In particular, Exhibit D2, the TRA registration report, was admitted without objection, which established that the motor vehicle Toyota Harrier, registration No. T825 DKB, was registered in the name of a third party at the time of the matrimonial proceedings. The High Court was therefore entitled to find that the vehicle was not, at the time, a matrimonial property capable of being distributed between the parties. That, however, does not negate the truth that the vehicle had been gifted to the appellant, as admitted by the respondent. But, as per the testimony of the respondent and exhibit D2, the property had since ceased to be in the hands of the respondent or the appellant.

Similarly, Exhibit D9 established, at the minimum, that the plot of land where the disputed Goba house was erected was not bought by the respondent. DW2, Samora Agapitus Lyakurwa, testified that he purchased the plot from Mr. Paschal on 21/10/2017 and subsequently constructed the house in 2019. He explained that he allowed the respondent and his family to occupy the house after they had been evicted from their previous residence at Makonde, Mbezi Beach. In absence of evidence to the contrary, there was no basis for the trial court to hold otherwise.

The appellant produced no title deed, sale agreement, official search or other documentary evidence establishing that the house belonged to her, to the respondent or jointly. Her evidence was principally oral and unsupported

by documentary proof. The High Court therefore properly analysed, re-evaluated and synthesized the oral and the documentary evidence, contrary to what has been alleged by the appellant. The first ground is therefore devoid of merit.

We note in the second ground of appeal the contention by the appellant that the High Court compromised the transparency and integrity of the judicial process by relying upon the handwritten records rather than the typed proceedings. This complaint is, to say the least, misconceived. There is no doubt that the typed proceedings were incomplete because they did not reflect all the exhibits admitted and did not reflect the true picture of what transpired during trial. Faced with that reality, it would have been improper for the High Court not to dig down in order to satisfy itself of what really transpired. We have no doubts in our minds that the learned Judge was entitled to consult the original handwritten proceedings in the trial court file to establish the authenticity of the record before her and to find out what transpired before the trial court. Doing otherwise would have attracted even bigger wrath from the Court than what the appellant has done.

We hold that the handwritten proceedings were the most contemporaneous record made by the trial magistrate. The consultation made therefrom was therefore intended to resolve an evidentiary and record deficiency, not to undermine the integrity of the appellate process.

There is also no complaint made that the appellant or her counsel was denied access to the original court file or was prevented from challenging its contents. Had the handwritten record contradicted the High Court's findings concerning the admission of the exhibits, the appellant ought to have demonstrated that contradiction. No such demonstration was made through an affidavit or other evidential testimony. Suffices to state that handwritten proceedings are always considered to be the original record contrary to the appellant's assertion to the contrary. Certified copies are susceptible to errors arising from typing or simply failure of the magistrate to proofread what is presented before her for authentication. The reliance upon the original proceedings, in our view, caused no prejudice to the appellant and did not occasion any miscarriage of justice. Ground 2 accordingly lacks merit.

In ground 3 and 4, the appellant alleges that the High Court dismissed the first, sixth and seventh grounds of the appeal without proper analysis and further failed to understand and determine grounds 6 and 7, thereby denying her the right to be heard and occasioning a miscarriage of justice.

The record does not support this contention. The High Court considered the complaints raised in the appeal, re-evaluated the evidence and gave reasons for its conclusions. The appellant was heard before both the trial court and the High Court. The fact that the High Court reached conclusions adverse to the appellant's interest does not amount to a denial of

the right to be heard. A right to be heard does not necessarily guarantee a favourable determination. Furthermore, the High Court's treatment of the documentary evidence, maintenance claim, custody and matrimonial property, demonstrates that it considered the substance of the complaints raised before it. Accordingly, grounds 3 and 4 do not disclose a basis for interfering with the decision of the High Court.

In ground 5, the appellant affirms that the High Court misapplied the applicable legal standards when considering the respondent's alleged immoral and abusive conduct. The allegations included cruelty, adultery, threats, chronic anger, disrespect, desertion and neglect. These were factual allegations which required proof. The appellant had the burden to establish facts upon which she relied.

Sections 117 and 118 of the Evidence Act, Cap. 6 [R.E. 2023] place the burden of proof upon the party asserting the existence of a fact. This Court reaffirmed this principle in **Paulina Samson Ndawavya vs Theresia Thomasi Madaha** (Civil Appeal No. 45 of 2017) [2019] TZCA 453, where it held that the burden remains throughout upon the party alleging a fact until it is discharged and cannot be lessened merely by the weakness of the opposing party's case.

The Court in the above stated case also adopted the principle stated by Lord Denning in **Miller vs Minister of Pensions** [1947] 2 All ER 372, that

in civil proceedings the burden is discharged where the evidence establishes that the alleged fact is more probable than not. In the present case, the appellant's allegations of immoral and abusive conducts were not sufficiently corroborated or established by credible evidence. Mere assertions could not, without more, justify the orders sought against the respondent. The High Court was therefore entitled to find that the allegations had not been proved to the required standard. Ground 5 consequently lacks merit.

In ground 6, the appellant contends that the High Court misapplied the law concerning the respondent's obligation to provide maintenance and consequently failed to award maintenance arrears of TZS 34,550,000. We note, like the courts below, that there was no tangible evidence put forth by the appellant to warrant an award of the claimed TZS 34,550,000/=. A claim for maintenance arrears of such magnitude requires credible and verifiable evidence establishing the amount allegedly incurred, the period covered and the respondent's failure to meet the relevant obligations. Although it is undisputed that the appellant tendered exhibit P4 containing some receipts and slips, that was not sufficient to warrant the award craved for. As aptly stated by the High Court Judge, the appellant, as the mother, cannot escape reciprocal obligation towards the welfare of her children.

It is noted further, that the appellant did not tender receipts, accounting schedules, bank statements or other documentary evidence

sufficient to establish the alleged arrears. Conversely, the respondent, who testified as DW1, demonstrated that he had been providing maintenance. He produced deposit receipts showing payments made towards maintenance, which were admitted as Exhibit D4. He also produced school payment receipts, admitted as Exhibit D5, demonstrating that he had been meeting educational expenses.

More importantly, the appellant's mother, PW2; admitted in her evidence that the respondent had been maintaining the family through money deposited into PW2's account. That evidence significantly undermines the appellant's assertion that the respondent had completely failed to provide maintenance to his family.

The principle that he who alleges must prove is firmly established. Applying that principle in this case, there is no gainsaying that the appellant failed to discharge the initial burden of proving the alleged maintenance arrears. The High Court therefore properly upheld the refusal to award the maintenance arrears. Ground 6 also fails.

Next for consideration is ground 7 of the appeal. The appellant contends that the High Court failed to consider the age and standard of living of the children and consequently upheld an inadequate monthly maintenance award of TZS 200,000. We are of the view that this ground lacks legs to stand on. The allegation remains bare, unsupported by the evidence and the

circumstances of the respondent. The evidence established that the respondent had no permanent employment at the time he was dragged in court to defend the case against him. Exhibit D7 is louder and conspicuous that the respondent's employment contract had been terminated. Further, the respondent placed before the court Exhibit D8, supported by the evidence of witnesses, including the appellant, showing that he had been suffering from serious illness since 2019, and had been undergoing medical treatment in India.

Despite those unfortunate circumstances, the respondent undertook to pay the children's school fees, provide health insurance and pay monthly maintenance of TZS 100,000/=, which was enhanced by the trial court to TZS 200,000/=. The two lower courts were therefore entitled to take his proposal into account after considering his financial circumstances, station in life and ill health.

Maintenance must be assessed not only by reference to the needs and standard of living of the children but also by reference to the means and circumstances of the person liable to maintain them. Both parents have a legal duty to contribute according to their respective means.

The appellant did not place sufficient evidence before the court, demonstrating that the respondent possessed financial capacity to meet the higher amount claimed. The High Court was therefore entitled to uphold the

monthly maintenance award of TZS 200,000/= together with the respondent's undertaking to meet school fees and health insurance. After all, the appellant also admitted that she earns TZS 300,000/= monthly, which can partly contribute to the maintenance. We therefore have nothing of substance to vary the amount awarded, which we deem fair in the circumstances. This ground is equally dismissed for want of merit.

In ground 8, the appellant contends that the High Court improperly exercised its discretion by failing to require a social inquiry report before determining custody and access to the children. The paramount consideration in custody matters is the welfare and best interests of the child. This principle is recognised under section 125(2) of the Law of Marriage Act, Cap. 29 [R.E. 2023], and sections 4(2) and 39(2) of the Law of the Child Act, Cap. 13 [R.E. 2023]. However, obtaining a social inquiry report under section 45(1) of the Law of the Child Act is a matter within the discretion of the court and is not an automatic statutory prerequisite in every custody matter. The appellant has not demonstrated that failure to obtain such a report rendered the decision unlawful or occasioned prejudice.

The High Court also properly considered the respondent's right to maintain contact with his children. Equally, we uphold the provisions of section 26(1)(c) of the Law of the Child Act which recognises the child's right to visit and maintain personal relations with both parents.

The allegations of immoral and abusive conduct made against the respondent were not sufficiently proved in order to justify the restrictions sought by the appellant. The High Court was therefore entitled to uphold the respondent's weekend and holiday access. Further, custody, access and maintenance orders are capable of variation where circumstances change, or the welfare of the children subsequently requires it. The appellant may, where necessary, approach the appropriate court for variation of the existing orders. This ground also fails.

Finally, in the last ground of appeal, the appellant alleges that the High Court, as the first appellate court, failed to properly re-evaluate the evidence concerning the disputed house and consequently failed to correct the trial court's alleged errors. We did discuss this accusation while dealing with the first ground of appeal. We find it to be lacking in merit. Section 114 of the Law of Marriage Act, Cap. 29 [R.E. 2023] requires the court, before ordering division of matrimonial property, to establish that the property exists, that it was acquired during the subsistence of the marriage, and that it was acquired through the joint efforts of the parties.

This principle has been subject of discussion in many cases, including **Pulcheria Pundungu vs Samwel Huma Pundungu** [1985] TLR 11; **Samwel Moyo vs Mary Cassian Kayombo** [1999] TLR 197 and **Gabriel**

Nimrod Kurwijila vs Theresia Hassani Malongo (Civil Appeal No. 102 of 2018) [2020] TZCA 31.

The appellant alleged that the Goba house was a matrimonial property but she failed to establish its ownership by either spouse. She produced no title deed, sale agreement, official search or other documentary evidence establishing that the house belonged to the parties. The photographs tendered by the appellant as Exhibit P3 are, in our considered view, incapable, on their own, to establish proof of ownership of the alleged matrimonial house by either of the parties herein. The photographs merely depicted a house under construction but did not establish who owned the property, when it was acquired, or by whom it was constructed. More importantly, no evidence sufficiently connected the photographs to the particular property alleged by the appellant to be a matrimonial asset. Counsel for the appellant argued that, as they were not objected to by the respondent, they sufficiently proved her assertion. We think otherwise. Failure to object does not relieve a party from the onus of providing proof of the allegations made.

The question therefore arises as to what evidential connection existed between the photographs in Exhibit P3 and the alleged matrimonial property. In the absence of such linkage, Exhibit P3 could not on its own discharge the appellant's burden of proving ownership or that the property constituted a

matrimonial asset. As earlier stated, DW2's evidence that he is the owner of the said house cannot be downplayed. It remains unchallenged. The contradictions alleged to be in the evidence of DW2 do not, in our view, contradict the truth that he is the owner of the house in question. Such contradictions, if at all, would have made empirical difference if there was sufficient evidence to prove otherwise. The appellant's assertions concerning ownership were therefore insufficient to establish that the house was a matrimonial asset.

The appellant failed to prove that either the house or the motor vehicle constituted matrimonial property subject to division. Where property is not proved to be matrimonial property, the issue of assessing the parties' respective contributions does not arise. The principle that property belonging to a third party should not be distributed as matrimonial property is also consistent with the approach taken in **Barelia Karangirangi vs Asteria Nyalambwa** (Civil Appeal No. 237 of 2017) [2019] TZCA 51, where the Court emphasised the importance of proper evidence concerning ownership of property. The ninth ground also fails.

Having considered all the grounds of appeal, we are satisfied that the High Court, sitting as the first appellate court, properly discharged its duty by re-evaluating and analysing the evidence emanating from the trial court, considering the admitted documentary exhibits, addressing the complaints

raised by the appellant and applying the relevant statutory and case-law principles. The appeal is therefore devoid of merits. It stands dismissed. As this is a matrimonial cause, we give no order as to costs.

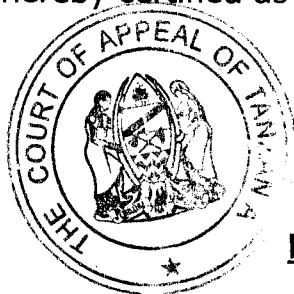
DATED at DODOMA this 28th day of August, 2026.

P. S. FIKIRINI
JUSTICE OF APPEAL

A. Z. MGEYEKWA
JUSTICE OF APPEAL

Y. B. MASARA
JUSTICE OF APPEAL

Judgment delivered virtually this 31st day of August, 2026 in the presence of Mr. Eric Denga learned counsel for the appellant, Mr. Walter Shayo learned Counsel for the respondent and Ms. Tabitha Daniel, Court Clerk; is hereby certified as true copy of the original.




A. L. KALEGEYA
DEPUTY REGISTRAR
COURT OF APPEAL